

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

1. CO. OF EL DORADO V. DEVON MATHIS (OTHER PARENT: AUBREY MATHIS)

PFS20210070

Respondent filed a Request for Order (RFO) on February 27, 2026, requesting modification of the current child custody, parenting time, and child support orders. Respondent concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 1, 2026, and a review hearing on May 28, 2026. Other Parent and Petitioner were personally served on March 5th and 6, 2026, respectively. However, Other Parent was not served with a copy of the referral to CCRC. Petitioner was only served with the RFO and Income and Expense Declaration.

The Department of Child Support Services (DCSS) filed a Responsive Declaration on March 10, 2026. Proof of Service shows Respondent and Other Parent were served on March 11, 2026. DCSS requests the court set the child support portion of the RFO for a hearing in Department 10 to be heard by the Child Support Commissioner pursuant to Family Code section 4251. DCSS does not raise the issue of the lack of proper service, therefore, the court deems it to have been waived.

Other Parent filed a Responsive Declaration on March 12, 2026. Petitioner was served on March 19, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was served. As such, the court cannot consider this document.

Respondent filed an ex parte application for emergency orders on April 8, 2026. Other Parent filed a Responsive Declaration on April 13th. The court denied the request on April 14, 2026, due to the lack of proper service on Petitioner as well as there being no exigent circumstances.

Respondent filed an RFO on April 14, 2026, seeking the same orders as set forth in the ex parte application. Proof of Service shows mail service on Other Parent only on May 19, 2026. Civil Procedure section 1005(b) states: "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California..." This would have made April 30th the last day for mail service.

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Only Respondent appeared at the CCRC appointment on April 1, 2026. As such, a single parent report was filed with the court on May 14, 2026. Copies were mailed to the parties the same day.

The court drops both the February 27th and April 14th filed RFOs from calendar due to the lack of proper service. All prior orders remain in full force and effect.

TENTATIVE RULING #1: THE COURT DROPS BOTH THE FEBRUARY 27TH AND APRIL 14TH FILED RFOS FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. MEGAN BLEDSOE V. GRANT BLEDSOE

26FL0012

Petitioner filed a Request for Order (RFO) on February 25, 2026, requesting the court make child and temporary spousal support orders as well as Family Code section 2030 attorney's fees. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served by first class mail on February 27th.

Respondent filed a Responsive Declaration and Income and Expense Declaration on May 14, 2026. Petitioner was served on the same day.

Petitioner is seeking guideline child support as well as temporary spousal support. Petitioner request the parties share equally in the cost of childcare and extracurricular activities as well as any unreimbursed medical expenses. Petitioner is also seeking \$10,000 in Family Code section 2030 attorney's fees.

Respondent submits on the request for guideline child support, however, he requests the court utilize his proposed X-Spouse calculation. Respondent objects to temporary guideline spousal support, as he asserts Petitioner failed to include an FL-157 in her pleadings. If the court is not inclined to deny temporary guideline spousal support, Respondent requests the court utilize his proposed calculations. Respondent also states he has been providing voluntary support in the amount of \$5,000 per month. Last, Respondent objects to the court ordering Family Code section 2030 attorney's fees, as he asserts Petitioner has sufficient access to funds to pay for her own counsel.

The court has read and considered the filings as outlined above. First, the court finds Petitioner is not required to file an FL-157, as this is an initial request for temporary guideline spousal support and the FL-157 is only required for a post-judgment change in support.

Utilizing the figures from the parties' Income and Expense Declarations with a 50% timeshare to each party, the court finds guideline child support to be \$3,418 per month (see attached X-Spouse) payable from Respondent to Petitioner. The court orders Respondent to pay Petitioner \$3,418 as and for guideline child support effective March 1, 2026, and payable on the first of each month until further order of the court or termination by operation of law.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment,